



POLICE DEPARTMENT CITY OF NEW YORK

April 3, 2019

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2018-19295
Police Officer Terrence Rooney	:	
Tax Registry No. 929080	:	
109 Precinct	:	

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Nancy R. Ryan
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Samuel Yee, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: John Tynan, Esq.
Worth, Longworth & London
111 John Street
New York, NY 10038

To:

HONORABLE JAMES P. O'NEILL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Said Police Officer Terrence Rooney, while assigned to Strategic Response Group #4, on or about and between January 15, 2017 and November 30, 2017, on twelve (12) occasions, wrongfully conducted personal business and wrongfully used Department equipment, to wit: a Department vehicle, for a non-Department purpose or non-City purpose during his scheduled tour.

P.G. 203-05, Page 1, Paragraphs 1, 2 PERFORMANCE ON DUTY - GENERAL
P.G. 203-06, Page 1, Paragraph 15 GENERAL REGULATIONS
P.G. 203-10, Page 1, Paragraph 5 PERFORMANCE ON DUTY-
PROHIBITED CONDUCT
GENERAL REGULATIONS

2. Said Police Officer Terrence Rooney, while assigned to Strategic Response Group #4, on or about and between January 15, 2017 and November 30, 2017, on twelve (12) occasions, while on duty, failed to make required entries in his Activity Log as to his movement during his tour.

P.G. 212-08, Page 1, Paragraph 1 ACTIVITY LOGS COMMAND
OPERATIONS

3. Said Police Officer Terrence Rooney, while assigned to Strategic Response Group #4, on or about and between January 15, 2017 and November 30, 2017, on twelve (12) occasions, while on duty, was absent from his assignment without permission or police necessity.

P.G. 203-05, Page 1, Paragraphs 1, 2 PERFORMANCE ON DUTY - GENERAL
GENERAL REGULATIONS

4. Said Police Officer Terrence Rooney, while assigned to Strategic Response Group #4, on or about and between April 15, 2017 and October 15, 2017, on three (3) occasions, wrongfully worked paid details within three (3) hours of a regularly-scheduled tour.

P.G. 205-40, Page 6, OFF DUTY EMPLOYMENT
General Prohibitions - Paragraph (c) (5) PERSONNEL MATTERS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on March 6, 2019.

Respondent, through his counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Respondent having pled Guilty, is found Guilty and a penalty of the loss of 20 vacation days is recommended.

ANALYSIS

Respondent testified that he was appointed to the NYPD in 2001 and has worked at various assignments in Queens since then. During the time period relevant to the Specifications,

Respondent was assigned to Strategic Response Group 4. (Tr. 7-9) At that time he had [REDACTED]

[REDACTED] who were approximately [REDACTED]. The [REDACTED] lived with

Respondent in [REDACTED] until August, 2017. The two [REDACTED] lived with [REDACTED]

[REDACTED] in [REDACTED]. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. (Tr. 10-12)

Respondent admitted that between January 1, 2017, and December 1, 2017, there were approximately nine occasions when he was dealing with his own personal issues [REDACTED]

[REDACTED] while he was on duty. (Tr. 13) Respondent testified about the date of March 11, 2017, as

a typical example of his misconduct on these nine dates. On that date he was assigned to go to

the 105 precinct with his SRG unit. On his way to that assignment, Respondent, while in a

department vehicle, stopped at [REDACTED] in [REDACTED] and [REDACTED] in [REDACTED]

[REDACTED]. He assumes that he left [REDACTED] in his own residence since [REDACTED]

stayed with him a few days a week and he had to stop at his house to get [REDACTED] to give to

[REDACTED] (Tr. 14-16, 23) One time when he didn't bring the medication to [REDACTED]

[REDACTED]. (Tr. 30) Respondent believes Lieutenant Smith was with him

on approximately three to five out of these nine occasions. (Tr. 32) Respondent recalled another

occasion where he had to go to a pizzeria about a block and a half from his house to give [REDACTED] a set of keys. (Tr. 18) On three occasions, May 11 and 12, 2017 and November 18, 2017, Respondent, while on duty, went to [REDACTED] with Lieutenant Smith during working hours. He believes that Lieutenant Smith's [REDACTED] was in the [REDACTED] on those dates. (Tr. 21-22) Respondent admitted he did not detail in his memo book that he took personal actions of on any of the 12 occasions. (Tr. 18) Respondent testified that he left his assignments on the nine occasions because he was looking out for the best interests of [REDACTED] but he knows the department needs are more important when you are on duty. (Tr. 32)

A stipulation was entered into the record that during the time period noted in Specifications 1, 2, and 3, on the 12 instances where the Respondent has admitted to his misconduct, on none of those dates did he miss any SRG mobilizations during that time. (Tr. 39-40)

With regard to Specification 4, Respondent admitted that he violated the rules concerning working paid details by working on three occasions within three hours of the start or end of his tour. He explained that this happened because several times his tour would change on short notice and he wouldn't be able to drop the paid detail by giving the 48 hours' notice necessary at the time. (Tr. 20-21)

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on July 2, 2001. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Many of the cases of misconduct for being off-post or conducting personal business while on duty concern a single incident. For example, a nine-year police officer with one prior adjudication negotiated a penalty of 10 vacation days for (i) being off post without permission or police necessity, (ii) failing to notify the Desk Officer before leaving his post and of his whereabouts as required, (iii) failing to be properly attired in that he was dressed in plainclothes during his tour. Respondent told the Desk Officer that he was taking meal, but actually left his assignment and the confines of his assigned precinct to go to a car dealership. Disciplinary Case No. 2015-13583, signed April 14, 2016 In another case, with a similar reason for being off-post as in the current case, a twenty-four year sergeant with no prior disciplinary history negotiated a penalty of 10 vacation days for being observed at his residence without authorization while performing an assigned overtime tour of duty. Respondent signed in on time at his command and then returned home [REDACTED] but did not seek permission to be off-post. Disciplinary Case No. [REDACTED] signed December 31, 2015 See also Disciplinary Case No. [REDACTED] signed November 6, 2014, in which a nine-year detective with no prior disciplinary record forfeited 12 vacation days after a mitigation hearing for making an inaccurate entry on the Roll Call Movement Sheet and going off post to take care of personal business. While on duty, Respondent went to the auto shop where his personal vehicle was being repaired. In addition, he left work about 20 minutes early without permission and failed to have registration and inspection stickers affixed to his car. And in a case where there was more than one instance of the officer being off-post, Disciplinary Case No. 2014-11284 signed February 13, 2015, a four-year police officer with no prior disciplinary history negotiated a penalty of 20 vacation days for being absent from his assignment without permission or police necessity on three occasions, failing to monitor and safeguard a prisoner during arrest processing by leaving the precinct for 45 minutes, wrongfully operating a Department vehicle to conduct personal

business without permission or authority to do so, and wrongfully conducting personal business while on-duty without just cause on two occasions.

In the current case, while the penalty should be greater than the loss of ten vacation days penalties imposed for cases where there is just one instance of being off-post, there are also some mitigating factors which weigh against imposing a penalty close to 10 days per incident. The counsel for the Department in recommending a penalty of the loss of 20 vacation days summarized these in his closing argument. I concur with his argument that one mitigating factor is that on the many instances where Respondent was away from his assignment, there was in some sense a tacit approval for these deviations from his duty by the supervisor, Lieutenant Smith, who was actually with Respondent on some of the occasions where Respondent went to [REDACTED] while on duty. Calling for additional mitigation are the instances where Respondent's misconduct arose on the initiation of the Lieutenant¹ who visited his mother in [REDACTED].

Counsel for the Department also argued that a mitigating factor was that for most of Respondent's off-post incidents, he was within the confines of [REDACTED] and that the two areas he visited the most were essentially along the route he had to travel to reach his assignment from SRG 4. While Respondent was at least close to where he was supposed to be, I do not find this factor to be a strong mitigating factor because no matter where he was, if Respondent was not at his assignment, he was not available to perform his essential duties if called upon. Similarly the factor that the parties stipulated that there were no missed SRG mobilizations while Respondent was not at his assigned post is more a matter of luck and his dereliction of his duties could have just as easily caused a serious officer shortage if a mobilization had occurred.

¹ Counsel for the Department advised that Lieutenant Smith negotiated a penalty of 30 days for misconduct arising out of this incident.

Finally, while it is understandable that Respondent would want to [REDACTED] his request for mitigation of a penalty based on his need to respond to incidents for [REDACTED] would hold more weight if in fact there were just one or two instances of needing to return [REDACTED] While Respondent said a system was eventually worked out to remedy the problem, he in essence allowed it to go on for the period of almost one year where he was not in his assignment approximately nine times based on this problem. It is a positive sign that Respondent testified that the [REDACTED] situation should not occur again and also that Respondent verbalized that he understands that while he is on duty the department's needs are more important than his personal needs.

In light of the analysis above, I recommend the loss of 20 vacation days as the penalty to be imposed in this case.

Respectfully submitted,



Nancy R. Ryan
Assistant Deputy Commissioner Trials

APPROVED
JUN 24 2019

JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER TERRENCE ROONEY
TAX REGISTRY NO. 929080
DISCIPLINARY CASE NO. 2018-19295

Respondent was appointed to the Department on July 2, 2001. On his last three annual performance evaluations, he received a 4.5 overall rating of "Extremely Competent/Highly Competent" in 2016, and twice received 4.0 overall ratings of "Highly Competent" in 2014 and 2015. He has one medal for Excellent Police Duty.

Respondent has no disciplinary history. As a result of the instant charges and specifications, Respondent was placed on Level 1 Discipline Monitoring on January 2, 2019. Monitoring remains ongoing.

For your consideration.

Nancy R. Ryan
Assistant Deputy Commissioner Trials